

HOUSE BILL 297

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 11, Chapter 14, Part 2; Title 11, Chapter 15 and Title 67, Chapter 5, relative to the Agricultural, Forest and Open Space Land Act of 1976.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-5-1005(a)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as agricultural, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained by the other owner through a right of survivorship.

SECTION 2. Tennessee Code Annotated, Section 67-5-1006(a)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as forest land, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained by the other owner through a right of survivorship.

SECTION 3. Tennessee Code Annotated, Section 67-5-1007(b)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as forest land, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained by the other owner through a right of survivorship.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.